

Families and Children Manual
Section: Non-Financial Eligibility Requirements
Policy Manual Number: 005.035
Chapter: **Cooperation with Child Support Services**

Legal Authority: 42 CFR 433.147

1. Policy Statement

To be eligible for TennCare Medicaid in the Caretaker Relative category, an individual must agree to cooperate with the state in establishing paternity of a child born out of wedlock and in obtaining medical support and payments for himself or herself and anyone for whom the individual can legally assign rights. Individuals who refuse to agree or fail to demonstrate cooperation with the state will no longer be eligible for TennCare Medicaid, unless the state has granted them good cause for failure to cooperate.

2. Definitions

Assignment of Rights: When an applicant or an authorized representative signs an application, he or she agrees to the following:

- His or her right to any medical support or payment for medical expenses is assigned or given to the state;
- The State may receive reimbursement from any third party for any medical expenditure made by HCFA on the enrollee's behalf; and
- The enrollee is required to return to the state any support or payments for medical expenses he or she received from a third party.

Cooperation with the State: The individual is required to provide the state any and all information necessary to establish paternity or obtain medical support or payment, if requested, unless good cause exists, and to attest to lack of information under penalty of perjury per 42 CFR 433.147(b)(3).

Medical Support: Medical support is financial support available to an individual for his or her medical expenses.

3. Exemptions from Cooperation Requirements

The following are exempt from child support cooperation requirements:

- Women eligible in the Pregnant Woman/Pregnancy MAGI category;
- A minor parent or caretaker who is eligible in a children's category;

- Single parent adoptions;
- The absent parent is deceased;
- A parent or caretaker whose only child receives Supplemental Security Income; and
- A parent or caretaker determined to have good cause for refusal to cooperate with Child Support Services.

4. Good Cause for Refusal or Failure to Cooperate with Child Support Services

Good cause can be granted for refusal or failure to cooperate with Child Support Services when the Department of Child Support Enforcement Services determines that cooperation is against the best interests of the child. Examples of when cooperation is not in the child's best interest include when:

- Cooperation may result in physical or serious emotional harm to the child; or
- Cooperation may result in physical or serious emotional harm to the caretaker; or
- A child was conceived as a result of incest or rape; or
- Adoption proceedings are pending for the child.

5. Refusal to Agree to Cooperate with Child Support Services

If an applicant refuses to agree to cooperate or an enrollee refuses to cooperate in establishing paternity or obtaining medical support and payments, the individual is not eligible for TennCare Medicaid and if enrolled, eligibility will be terminated.

6. Verification

Individuals are considered to be cooperating if, at the time of application, they agree to cooperate with Child Support Services.

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Version History

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